

Form No:HCJD/C-121
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
Rawalpindi Bench Rawalpindi
JUDICIAL DEPARTMENT

Criminal Appeal No.1101 of 2025

Syed Basharat Hussain Shah Vs. The State, etc.

Date of hearing: 06.11.2025

Appellant by: - Mr. Tariq Mehmood Tarar &
Ms. Javeria Mehmood,
Advocates with appellant on
bail.

State by: - Malik Rafaqat, DPG with
Zameer SI.

Complainant by: - M/S Malik Muhammad
Kabir and Muhammad Arif,
Advocates with Muhammad
Abbas (**complainant**).

SADAQAT ALI KHAN, J. Appellant (**Syed Basharat Hussain Shah**) has been tried by the trial Court in private complaint offences under Sections 3 & 4 of the Illegal Dispossession Act, 2005 and was convicted and sentenced vide judgment dated 14.10.2025 as under: -

Syed Basharat Hussain Shah (appellant)

u/s 3(2) of Illegal
Dispossession Act, 2005

Sentenced to undergo SI for three years with fine of Rs.100,000/- and in default whereof to further undergo simple imprisonment for three months.

He was also directed to pay Rs.2,50,000/- as compensation to the complainant (**recoverable as arrears of land revenue**) and in default whereof to further undergo six months SI.

Possession of suit property was also directed to be restored to the complainant.

2. Heard. Record perused.

3. On 03.02.2022, Muhammad Abbas (**complainant**) filed complaint under Sections 3 & 4 of Illegal Dispossession Act, 2005 (**“the Act”**) stating therein that Syed Basharat Hussain (**appellant**) along with Syed Imran Hussain Shah, Munir Hussain and Zain Shah co-accused (since acquitted in earlier trial) had illegally dispossessed him from the land bearing

Khasras No.192, 193, 194/2 measuring 2-Kanals 1-Marla situated in Mouza Nathwala, Tehsil Dina, District Jhelum.

4. It is a matter of record that on 17.11.2017 Muhammad Abbas (**complainant**) filed a suit for declaration qua the same property against the appellant and others, wherein appellant appeared before the Civil Court concerned and stated that he is in possession of his own land and has not grabbed the land of complainant which was disposed of accordingly. On 15.09.2020 Muhammad Abbas (**complainant**) moved an application under Section 67-B of the Land Revenue Act, 1967 for taking possession of the suit land against the appellant on the basis of demarcation report dated 22.04.2019 prepared by the revenue officer concerned, which too was dismissed by the Assistant Commissioner concerned and appeal filed by the appellant against demarcation report dated 22.04.2019 was accepted by the appellate authority concerned.

5. It is not out of place to mention here that on 07.04.2021 Muhammad Hanif (**father of complainant**), filed suit for possession regarding the suit land against the appellant. During pendency of the said suit, on 03.02.2022 with the delay of more than ten months instant private complaint by concocting a new story has been filed by the complainant against the same suit land whereafter his father (**Muhammad Hanif**) had withdrawn his suit for possession to file fresh one, which was allowed vide order dated 15.02.2023 but fresh suit has not been filed yet.

6. In earlier trial, appellant was convicted and sentenced by the trial Court vide judgment dated 07.06.2024 but in Criminal Appeal No.505 of 2024 filed by him, the following order was passed by this Court on 20.02.2025.

“With the consent of both the learned counsel for the parties, impugned judgment only to the extent of the

*appellant is hereby set-aside. Matter is remanded to the trial Court only to the extent of the appellant with the direction to appoint Tehsildar concerned for demarcation of the suit property in accordance with law. Appellant with his learned counsel (**Mr. Tariq Mahmood Tarar, Advocate**) undertakes to remove the encroachment, if found, under his possession after fresh demarcation (**discussed above**). Order accordingly.”*

7. Learned counsel for the complainant submits that after remand of the case by this Court, the trial Court appointed Tehsildar Dina for demarcation of the suit land who demarcated the same vide demarcation report Ex.CW-2/C/1-2 and found encroachment against the appellant. On the other hand, learned counsel for the appellant submits that demarcation report is against the law.

8. The demarcation report posits that revenue officer simply stated that Khasra No.201 has been considered permanent point by the persons present there and from that Khasra without determining its exact location started demarcation of the disputed Khasra numbers. Demarcation report does not figure out that revenue officer had determined three permanent points from different angles after determining their exact location to demarcate the suit land, violation of which makes the demarcation report unreliable.

9. Every dispute of the possession/dispossession of immovable property does not fall within the ambit of provisions of Section 3 of the Act. To constitute an offence u/s 3 of the Act, the complainant must have to disclose the existence of both i.e an unlawful act (actus reas) and criminal intent (mens rea). The Act was enacted to shield the persons in settled possession from land grabbers and violent or lawless ouster, not to furnish a shortcut for private parties in domestic civil dispute. Its provisions operate as protections, not weapons. In view of the

allegation and circumstances discussed above, it is apparent that even if it is ultimately established that the appellant is in occupation of an area owned by the complainant, there is no indication that appellant had the necessary criminal intent. The dispute between the parties is of purely civil nature as to the exact location of their respective parcels of land, for which suit for possession qua the suit land was rightly filed by Muhammad Hanif (**father of complainant**) which was withdrawn after filing instant complaint (discussed above). Complainant can file fresh suit for possession in this respect, if so desired. Reliance is placed on judgment dated 26.09.2025 passed by the august Supreme Court of Pakistan in a case titled “*Abbas Asif Zaman and another Vs. The State and others*” (**Criminal Petition No.61-K of 2025**).

10. In view of the above, this criminal appeal filed by the appellant (**Syed Basharat Hussain Shah**) is accepted, his conviction and sentences awarded by the trial Court through the impugned judgment are hereby set aside. He is acquitted of the charges. Appellant is present on bail, his sureties stand discharged.

(SADAQAT ALI KHAN)
JUDGE

Approved for reporting

JUDGE

Anwaar*